

CONSTITUTION & BYLAWS OF THE INTERFRATERNITY COUNCIL OF FURMAN UNIVERSITY

(As Amended & Ratified October 25th, 2023)

We, the Interfraternity Council (IFC) at Furman University set forth this Constitution and Bylaws to create closer working relationships and coordination among its member chapters and Furman University, in accordance with the policies and standards established by the North American Interfraternity Conference (NIC). We, the Interfraternity Council (IFC) exist to advance the success of its member chapters and to promote the overall fraternity experience. With this aim, the IFC actively encourages interfraternalism and collaboration with other fraternity/sorority governing councils and student organizations. Maintaining a positive working relationship and partnership with the campus administration, alumni, NIC and inter/national headquarters is critical toward elevating the role of the IFC.

ARTICLE I: NAME

The name of this organization shall be the Interfraternity Council (IFC) of Furman University.

ARTICLE II: PURPOSE

Section I. The Interfraternity Council of Furman University serves as the governing body of all recognized social fraternities.

Section II. We, the Interfraternity Council at Furman University believe in:

- A. Citizenship: Fraternity men must be responsible, respectful and inclusive citizens of their community.
- B. Accountability: Fraternity men have the responsibility to hold each other accountable to their fraternal ideals and expectations.
- C. Choice: Fraternities have the responsibility and right to select men who align with their ideals and expectations.
- D. Opportunity: Every man has the right to seek membership in a fraternal experience on terms he determines best fit his needs.
- E. Fairness: For justice to effectively be administered, fraternity members and organizations must provide and be afforded fundamental due process rights.
- F. Interfraternalism: NIC member chapters stand in solidarity for fellow member chapters that meet NIC Standards.

Section III. The purpose of the IFC shall be to:

- A. Provide a peer governance structure for its member chapters;
- B. Enforce and hold member chapters accountable to the IFC Code of Conduct and other governing documents;
- C. Develop policies and procedures to provide safe and healthy membership experiences;
- D. Develop policies and procedures to provide safe and healthy social experiences;
- E. Advocate for appropriate levels of university financial and staffing support;
- F. Promote the interests of its member chapters & men's fraternities in general;

- G. Discuss questions of mutual interest and present to its member chapters such recommendations as the IFC deems appropriate;
- H. Promote the interests of Furman University
- I. Promote mutual cooperation between its member chapters, the IFC, fellow governing councils, and student organizations at Furman University, Furman University, its students, faculty, staff, and local community.

ARTICLE III: MEMBERSHIP

Section I. Membership Eligibility

- A. Membership in the IFC is open to chapters and colonies of fraternities at Furman University, as follows:
 - 1. Any chapter or colony of a North American Interfraternity Conference (NIC) member organization shall hold membership in the IFC.
 - 2. Any chapter or colony of a local, state, regional, or inter/national fraternity, which is not a member of the NIC, may hold membership in the IFC.
- B. The IFC will not recognize chapters that have been suspended or have had the charter revoked by the inter/national organization or Furman University.

Section II. Membership Classification for Member Chapters

The membership classification of member chapters shall be as follows

- A. Full Member: Any fraternity chapter which has obtained its charter from its inter/national organization, or any local fraternity chapter. Full Membership grants the member chapter all rights, privileges and responsibilities under the IFC Constitution and Bylaws.
- B. Associate Member: Any fraternity colony of an inter/national organization. Associate Membership grants the member chapter all rights, privileges, and responsibilities under the IFC Constitution and Bylaws, except that it cannot hold IFC Executive Board positions nor have an IFC Judicial Board Justice.

For the purpose of this Constitution and the IFC Bylaws, both Full Members and Associate Members are referred to as member chapters.

Section III. Member Chapter Minimum Expectations

Each member chapter shall adhere to and abide by the following minimum expectations:

- A. Each member chapter shall comply with all policies set forth by:
 - 1. The North American Interfraternity Conference (NIC).
 - 2. The IFC Constitution, Bylaws, Code of Conduct, and other policies.
 - 3. The rules and regulations of Furman University unless they are in violation of NIC standards or practices.
 - 4. The general values-based conduct of fraternity men.
- B. Each member chapter shall maintain a minimum chapter annual cumulative GPA of 2.70 and a minimum new member class GPA of 2.70 or be at/or above the institution's all-men's grade point average if that grade point average is below a 2.70.
- C. Each member chapter shall be current on all IFC dues owed.
- D. Each member chapter shall keep their chapter roster current with the Office of Student Involvement.

- E. Each member chapter shall comply with the attendance policies for the IFC General Body and the IFC Judicial Board, as outlined within this Constitution.

A member chapter which has failed to meet any of the minimum expectations outlined in this Section shall be referred to the IFC Vice President of Social Standards & Risk Management for potential judicial review.

Section IV. Membership Status for Member Chapters

The membership status of member chapters shall be as follows:

- A. Good Standing: A member chapter shall be deemed to be in Good Standing if the member chapter is not currently operating under Non-Status Sanctions or Status Sanctions, as defined within the IFC Bylaws, and is currently meeting the minimum expectations outlined in Section III of this Article.
- B. Good Standing on Probation: A member chapter shall be deemed to be in Good Standing on Probation if the member chapter is currently operating under Non-Status Sanctions and currently meets the minimum expectations outlined in Section III of this Article.
- C. Poor Standing: A member chapter shall be deemed to be in Poor Standing if the member chapter has been placed under Suspension by the IFC or has currently failed to meet the minimum expectations outlined in Section III of this Article. Poor Standing equates a loss of voting rights for any member chapter deemed as such.

Section V. Individual Member Definitions

For the purpose of this Constitution and Bylaws, and with an understanding that each member chapter may have its own terminology for internal use, individuals will be defined as follows:

- A. Initiated Member: An Initiated Member shall be defined as any man who has been initiated into any fraternity at Furman University.
- B. New Member: A New Member shall be defined as any man who has accepted a bid to join a fraternity at Furman University but has not been initiated into that fraternity.
- C. Potential New Member: A Potential New Member shall be defined as any man who has not accepted a bid from any fraternity at Furman University.

Section VI. IFC Affirmation and Adoption of NIC Standards

The member fraternities of the NIC have passed minimum standards for all NIC member fraternities. These do not preclude the IFC or member chapters from adopting higher or additional standards. The IFC can amend its Constitution and Bylaws, adopt policies and pass resolutions, so long as those do not conflict with existing NIC Standards established to improve all facets of the fraternity experience. Further, the IFC and its member chapters will actively support and pass no policy that infringes on the associational rights of member chapters.

The IFC will pay annual dues to the NIC and affirms and adopts the NIC Standards, and each member chapter shall be required to meet the following to maintain IFC membership:

- A. Each member chapter shall communicate its values through its Ritual at least once annually;

- B. Each member chapter shall communicate to its Initiated Members and New Members the importance and benefits derived from continuous membership education throughout the undergraduate experience and encourage or require its Initiated Members and New Members to participate in educational programming, whether conducted by the chapter, the Interfraternity Council, Furman University, or independent organizations covering the following topics:
 - 1. Academic Achievement and Student Success
 - 2. Alcohol and Drug Use and Awareness
 - 3. Career Preparation
 - 4. Civic Engagement
 - 5. Hazing Awareness
 - 6. Leadership Development
 - 7. Diversity and Inclusion
 - 8. Sexual Violence Awareness
 - 9. Values and Ethics
- C. Each member chapter and the IFC shall support student choice:
 - 1. Each male student should be free to accept bids from whichever organization he chooses, provided a bid is extended to him.
 - 2. Each member chapter is free to extend bids to whichever male students they deem fit at their own discretion.
- D. Each member chapter shall only offer bids to join the fraternity to Potential New Members who meet the following academic requirement: A minimum collegiate grade point average of 2.50.
- E. Each member chapter shall maintain an annual cumulative grade point average of a 2.70 or be at/or above the institution's all-men's grade point average if that grade point average is below a 2.70.
- F. Each member chapter shall maintain an annual cumulative grade point average for new members classes of a 2.70 or be at/or above the institution's all-men's grade point average if that grade point average is below a 2.70.
- G. Each member chapter shall have New Member education programs lasting no longer than 6 weeks.
- H. Each member chapter shall prohibit women's auxiliary groups, such as "little sisters."
- I. Each member chapter shall have and follow risk management policies covering the following areas:
 - 1. Alcohol and Drugs
 - 2. Hazing
 - 3. Sexual Violence
 - 4. Fire, Health and Safety
- J. Each member chapter shall prohibit the use of alcohol and drugs by all Initiated Members, New Members and Potential New Members during all recruitment activities including, but not limited to bid day events, big brother events and initiation-related activities.
- K. Each member chapter shall prohibit the use of alcohol and drugs by all Initiated Members and New Members during all New Member educational programming/orientation activities.

- L. Each member chapter shall adopt a statement in support of environments that are free of hazing and sexual misconduct, as defined by their inter/national organization, within all aspects of formal and informal chapter operations.
- M. Each member fraternity and the IFC and each of its member chapters must carry sufficient liability insurance coverage.
- N. Each member chapter and the IFC shall work with the campus to provide health and safety education and training provided for all chapters each term.
- O. Each member chapter and the IFC shall establish a strategic communication plan for the IFC and its member chapters that addresses protocol for crisis response, social media, marketing and media engagement.

ARTICLE IV: REPRESENTATION

Section I. IFC General Body

The powers of the IFC shall be vested in the IFC General Body. The IFC General Body shall be the governing legislative body responsible for the general policies of the IFC, for electing its Executive Board, and for instructing its Executive Board as to the activities and operations of the IFC. All such activities shall respect the individual sovereignty and associational rights of each member chapter and shall not relinquish any governance authority to any other governing body.

Section II. IFC General Body Composition

The IFC General Body shall be composed of voting IFC Delegates and non-voting IFC Member Chapter Delegates.

Section III. IFC Delegates

Each member chapter shall have one IFC Delegate who serves on the IFC General Body. Member Chapters may select the IFC delegate in any manner they see fit. IFC Delegates should be the same person each time, tasked with informing the IFC on their respective member chapter's weekly report and relaying information from the IFC General Body Meetings to their respective member chapter.

Section IV. IFC Member Chapter Representatives

Each member chapter shall also have an additional member chapter representative present at IFC General Body Meetings. The role of the Member Chapter Representative is to be an informed individual on member chapter information that the IFC Delegate from that respective chapter would otherwise not be responsible for. The IFC Member Chapter Representative can be a rotating position, fulfilled by whoever that week is most fitting for the role, selected by each member chapter in any way they see fit. (i.e., an IFC General Body Meeting in which recruitment was discussed, the head position governing recruitment would likely be the IFC Member Chapter Representative for his member chapter)

Section V. IFC Delegate and Member Chapter Representative Eligibility

In order to serve as the IFC Delegate or IFC Member Chapter Representative, individuals must meet the following requirements:

- A. Be an Initiated Member, in good standing, of a member chapter.
- B. Maintain good academic standing with Furman University.
- C. Be devoted to the general ideals and principles of fraternity life and conduct himself in a professional manner consistent with the Mission and Purpose of the IFC, as defined within this Constitution.
- D. Have a working knowledge of the IFC Constitution and Bylaws, Furman University policies, NIC Standards, and NIC Alcohol & Drug Guidelines.
- E. Not be a current member of the IFC Executive Board

Section VI. Term of Office of IFC Delegates & Member Chapter Representatives

The term of office for IFC Delegates and Member Chapter Representatives shall be until their graduation, resignation, or replacement under the procedures determined by each member chapter; or upon his election to serve on the IFC Executive Board or as his member chapter's IFC Justice for the IFC Judicial Board. Each IFC term of service begins and ends on the Spring Bid Day.

Section VII. IFC General Body Meeting Policies

The IFC General Body shall conduct its meetings according to the following requirements:

- A. The most recent edition of Robert's Rules of Order shall be used to run all meetings.
- B. A majority of member chapters present shall constitute a quorum in order to conduct IFC General Body business.
- C. The IFC General Body shall conduct regularly scheduled business meetings weekly during the academic year, unless otherwise determined by the IFC executive board.
- D. Special meetings may be called by the IFC President or Advisor at any time or at the request of two member chapters, with notice of the time, location, and purpose of the special meeting provided to all member chapters at least 72 hours in advance.
- E. Each member chapter's IFC Delegate and IFC Member Chapter Representative are required to attend all meetings of the IFC. More than one unexcused absence per academic year shall result in the member chapter being referred to the IFC Vice President of Standards & Risk Management for potential judicial review.
- F. IFC Delegates and IFC Member Chapter Representatives who plan to miss an IFC General Body Meeting shall contact the IFC Executive Vice President at least 24 hours in advance for their absence to be considered excused.
- G. Acceptable excuses shall include:
 - 1. Classes scheduled during rescheduled IFC General Body Meetings or extenuating class circumstances (All IFC General Body and Executive Positions are only eligible to be slated for positions on the IFC if they are able to attend the scheduled day and times of IFC General Body and Executive Meetings)
 - 2. Night Exams/Night Classes
 - 3. Illness
 - 4. Formal Initiation or Rituals
 - 5. Funeral or Formal Family Event
 - 6. All excuses, including those listed above, shall fall under the discretion of the Greek Life Advisor, IFC President, and the Executive Vice President
- H. Limits on Absences:

1. IFC Delegates, IFC Member Chapter Representatives, and IFC Executive Board members are allowed one unexcused absence. If a delegate has more than two unexcused absences, the IFC will ask the delegate's chapter to replace the delegate.
 2. If an IFC Delegate or IFC Member Chapter Representative must miss a meeting, his respective chapter must send a replacement delegate or representative. Chapters without an IFC Delegate shall have no voice or vote in meetings.
 3. If an IFC Delegate is absent for more than 25% meetings (excused or unexcused), the chapter will be advised to replace that IFC Delegate.
- I. The date, time, and location of Business Meetings shall be determined by the Executive Board and changes will be communicated with a week's notice at minimum. Fraternity presidents should submit items of discussion to be placed on the Business Meeting agenda 24 hours in advance.

Section VIII. IFC General Body Voting Policies

The IFC General Body shall operate utilizing the following voting policies:

- A. Each member chapter, in good standing, shall have one vote held by the IFC Delegate. The IFC Member Chapter Representative is a non-voting member. Individuals holding IFC Executive Board positions are not entitled to a vote.
- B. In the event of a tie, the IFC President shall cast the deciding vote.
- C. With the exception of the election of IFC Executive Board positions, there shall be no secret ballot votes.

ARTICLE V: ROLE OF THE IFC DELEGATE

Section I. IFC Delegate

The duties and responsibilities of all IFC Delegates are as follows:

- A. Serve as a representative and voice for his member chapter's concerns regarding the fraternity community.
- B. Support any and all IFC initiatives
- C. Represent the larger fraternity community's interests.
- D. Inform his member chapter of the actions, discussions, and workings of the IFC General Body.
- E. Serve as a liaison between the IFC General Body and his respective member chapter.
- F. Represent the highest ideals of fraternity life to the greater campus community.

ARTICLE VI: ROLE OF THE IFC MEMBER CHAPTER REPRESENTATIVE

Section I. IFC Member Chapter Representative

The duties and responsibilities of all IFC Member Chapter Representatives are as follows:

- A. Serve as an informed voice for his member chapter's concerns regarding the specific information covered in that week's IFC General Body Meeting.

ARTICLE VII: IFC EXECUTIVE BOARD

Section I. IFC Executive Board

The IFC Executive Board shall be responsible for carrying out the purpose and policies of the IFC and for its day-to-day operations and activities, as directed by the IFC General Body.

Section II. IFC Executive Board Composition

The IFC Executive Board shall be composed of the following positions, listed in order of ranking, with duties and responsibilities outlined within the IFC Bylaws:

- A. President
- B. Executive Vice President
- C. VP of Standards & Risk Management
- D. VP of Finance
- E. VP of Recruitment
- F. VP of Scholarship & Service
- G. VP of Public Relations
- H. VP of Member Development

Section III. IFC Executive Board Eligibility

In order to be elected and serve as a member of the IFC Executive Board, individuals must meet the following requirements:

- A. Be an Initiated Member, in good standing, of a member chapter.
- B. Maintain an overall grade-point average of 2.75 or higher and good academic standing with Furman University.
- C. Be devoted to the general ideals and principles of fraternity life and conduct himself in a professional manner consistent with the Mission and Purpose of the IFC, as defined within this Constitution.
- D. Have a working knowledge of the IFC Constitution and Bylaws, Furman University policies, NIC Standards, and NIC Alcohol & Drug Guidelines.
- E. Not currently serve as his member chapter's IFC Delegate, Member Chapter President, IFC Alternate Representative, or IFC Judicial Board Justice.
- F. Must complete formal judicial policies and procedures training.
- G. Not have a conflict of interest with his own chapter while serving on the IFC Executive Board, i.e., serving as a member chapter's head Risk Management officer excludes that individual from serving on the IFC Executive Board as the Vice President of Risk Management & Social Standards.

The IFC Executive Board has its own responsibilities and duties to the fraternity community as a whole, and those individuals' duty to their own chapter cannot supersede their job on the Interfraternity Council. Therefore it is expected that a chapter's head officer for a department cannot also be expected to hold office for IFC's head officer of a department.

Section IV. IFC Executive Board Meeting Policies

The IFC Executive Board shall conduct its meetings according to the following requirements:

- A. The most recent edition of Robert's Rules of Order shall be used to run all meetings.
- B. A majority of IFC Executive Board members present shall constitute a quorum in order to conduct IFC Executive Board business.
- C. The IFC Executive Board shall conduct regularly scheduled meetings on a bi-weekly basis.

- D. Special meetings may be called by the IFC President with notice of the time, location, and purpose of the special meeting provided to each IFC Executive Board member at least 72 hours in advance.
- E. Each IFC Executive Board member is required to attend all meetings of the IFC Executive Board and all meetings of the IFC General Body. Absences may result in removal from office.

Section V. IFC Executive Board Election Policies

The following policies and procedures shall be utilized for the election and removal of IFC Executive Board officers:

- A. Applications for IFC Executive Board positions shall open at a minimum of five weeks prior to the conclusion of the fall academic semester.
- B. Following the close of IFC Executive Board applications, the current IFC Executive Board shall conduct interviews of applicants
- C. The IFC Executive Board will form a slate from the applicant pool, with one applicant selected for each position.
- D. The slate will be brought before the IFC General Body and must be approved by a vote of at least 2/3rds.
- E. Any individual serving in an IFC Executive Board position may be removed from his position by a 2/3 affirmative vote of the IFC General Body.
- F. In the event of a vacancy in any IFC Executive Board position, the IFC President shall appoint a successor to complete the term under the advice and consent of the remaining members of the IFC Executive Board.
- G. Should a vacancy occur in the office of the IFC President, a special election shall be held within two meetings after the vacancy was created.
- H. Each member chapter is only allowed a maximum of three representatives on the Executive Board. The order for slating on an office shall be listed as follows:
President, Executive Vice President, Vice President of Standards & Risk Management, Vice President of Recruitment, Vice President of Finance, Vice President of Scholarship & Service, Vice President of Public Relations, and Vice President of Member Development.

ARTICLE VIII: ROLE OF THE IFC EXECUTIVE BOARD OFFICERS

Section I. IFC President

The duties and responsibilities of the IFC President are as follows:

- A. Provide guidance and focus to the efforts of the General Body and Executive Board.
- B. Preside over all meetings of the General Body and Executive Board.
- C. Cast the final vote in the event of a tie.
- D. Build rapport and establish positive working relationships between IFC and member chapter leaders.
- E. Serve as the official spokesperson for the Fraternity Community
- F. Serve as the official representative of the Fraternal Community to the Student Government Association
- G. Regularly interact with the leaders of other governing councils and campus organizations.

- H. Attends weekly meetings with the Panhellenic President and Assistant Director of Student Involvement.
- I. Establish a working relationship with key Furman University administrators.
- J. Establish a working relationship with and communicate campus data, issues, and trends in a timely manner to the NIC.

Section II. IFC Executive Vice President

The duties and responsibilities of the IFC Executive Vice President are as follows:

- A. Assume the duties of the IFC President in his absence.
- B. Work closely with the IFC President in helping him discharge his duties and shape policy.
- C. Work with and oversee the FSL advisory committee in conjunction with the Panhellenic Council.
- D. Reserve the space for and account for attendance at all meetings of the IFC General Body or Executive Board.
- E. Attend the weekly meetings of the Student Government Association as the IFC's official representative.
- F. Duties as assigned.

Section III. IFC Vice President of Social Standards & Risk Management

The duties and responsibilities of the IFC Vice President of Social Standards and Risk Management are as follows:

- A. Serve as chair of the IFC Judicial Board and serve as the non-voting Chief Justice of all IFC Judicial Board hearings.
- B. Investigate and refer to the IFC Judicial Board alleged violations of IFC policy, including but not limited to:
 - 1. The IFC Constitution, Bylaws, and policies;
 - 2. Federal, state, and local laws;
 - 3. The rules and regulations of Furman University; and
 - 4. The general values-based conduct of fraternity men.
- C. Ensure proper filing and preparation for all judicial actions.
- D. Ensure compliance with all IFC judicial action imposed upon a member chapter.
- E. Educate member chapters on the IFC Constitution and Bylaws, judicial processes, and risk management policies. Educate member chapters on the NIC Health and Safety Guidelines, the IFC Constitution and Bylaws, judicial processes, and risk management policies.
- F. Conduct judicial policy and procedures training for new IFC Judicial Board justices.
- G. Assist in conflict mediation between member chapters.
- H. Review all IFC governance documents, at least annually.
- I. Assist member chapters in the implementation of and compliance with the NIC Alcohol & Drug Guidelines.
- J. Coordinate Health and Safety efforts with other councils and campus partners.
- K. Provide support to chapter Risk Management and Health and Safety Officers.

Section IV. IFC Vice President of Recruitment

The duties and responsibilities of the IFC Vice President of Recruitment are as follows:

- A. Work with member chapters to establish a recruitment process that meets the needs of chapters and potential new members, as well as provides opportunities for interested men to learn about the fraternity experience.
- B. Will focus on fostering interest in joining fraternities and marketing the fraternity experience to incoming students and potential new members.
- C. Develop recruitment workshops and programs for member chapters.
- D. Maintain an interest list of Potential New Members.
- E. Collect and maintain accurate New Member Rosters for each member chapter.
- F. Provide advice and support to member chapter recruitment officers.

Section V. IFC Vice President of Finance

The duties and responsibilities of the IFC Vice President of Administration and Scholarship are as follows:

- A. Supervise and manage the annual budgetary process for the IFC General Body
- B. Collect IFC member chapter dues or other assessments as needed.
- C. Maintain accurate records throughout the year through invoicing and receipts.
- D. Review and approve all IFC expenditures and reimbursements.
- E. Provide advice and support to member chapter financial officers.

Section VI. IFC Vice President of Scholarship & Service

The duties and responsibilities of the IFC Vice President of Scholarship and Service are as follows:

- A. Coordinate a scholarship chair orientation program for member chapters.
- B. Collect and distribute academic performance rankings.
- C. Publish important academic dates and deadlines.
- D. Collect and distribute information about campus academic services, such as tutors, the writing lab, math lab, learning assistance programs, interest tests, career counseling, placement workshops, and library resources.
- E. Work individually with member chapter scholarship chairs below the all-men's grade point average.
- F. Build and maintain relationships with faculty, academic offices, and academic honorary societies.
- G. Provide advice and support to member chapter scholarship officers.
- H. Provide advice and support to member chapter philanthropy officers.
- I. Collect and report member chapter community service hours, philanthropic dollars, and activities.
- J. Provide advice and support to member chapter community service/philanthropy officers.
- K. Select and oversee a community-wide, IFC-sponsored philanthropic effort.
- L. Provide opportunities for members of the fraternal community, and the at-large Furman community, to participate in community service events.
- M. Foster relations between the Fraternal community and Service-based organizations hosted on Furman University and the at-large Greenville Community.

Section VII. IFC Vice President of Public Relations

The duties and responsibilities of the IFC Vice President of Public Relations are as follows:

- A. Develop and execute a public relations and social media strategy.
- B. Collect and disseminate information on the fraternity community to all campus and community media sources.
- C. Keep the media informed on upcoming events or potential news.
- D. Establish a positive working relationship with external constituents.
- E. Assist in the development of various IFC publications and outreach programs.
- F. Duties as assigned
- G. Lead the Greek Week committee in conjunction with the Panhellenic Association.

Section VIII. IFC Vice President of Member Development

The duties and responsibilities of the IFC Vice President of Member Development are as follows:

- A. Collect and report new member retention, academic, and involvement statistics.
- B. Develop best practices for new member and member education programs for member chapters.
- C. Organize, develop, and implement a new member orientation program
- D. Develop opportunities for continuing member education by collaborating with alumni, Furman University offices and departments, and student organizations to offer educational programming covering the following topics: academic achievement, alcohol consumption, career preparation, civic engagement, hazing, leadership development, sexual assault/abuse, and values and ethics.
- E. Provide advice and support to member chapter member development officers.
- F. Coordinate diversity and inclusion programming for member chapters and promote inclusion within member chapters in order to make the fraternity community more welcoming and inclusive to individuals from diverse backgrounds.
- G. Collect and distribute information about campus diversity and inclusion programming and resources.
- H. Build and maintain relationships with faculty, academic offices, and/or departments that support diversity and inclusion.
- I. Provide advice and support to member chapter new member education officers and programming officers to provide diversity and inclusion programming.

ARTICLE IX: IFC JUDICIAL BOARD

Section I. IFC Judicial Board Jurisdiction

To address issues and solve problems before others must intervene, the IFC must have a robust peer governance process that addresses violations of IFC policies and NIC Standards. The IFC shall be a self-governing organization with an independent Judicial Board which shall have jurisdiction over cases involving alleged member chapter violations, including but not limited to:

- A. The authority of the IFC to hold member chapters accountable to the IFC Constitution, Bylaws, IFC Code of Conduct, and other policies is separate and independent from any university expectations or process related to the Student Code of Conduct.

- B. The IFC will adopt a Code of Conduct for full and associate IFC member chapters. This shall reflect the responsibilities and rights of fraternity membership, NIC Standards and recommended practices.
- C. The IFC will adopt a Constitution and Bylaws that reflects NIC Standards and recommended practices.
- D. The IFC will establish a Judicial Board with representation from full IFC members. The IFC will work with the campus to provide annual training to the Judicial Board on due process, standard of proof, and progressive, educational sanctioning.
- E. The Judicial Board shall work with the university to implement a comprehensive conduct program that enhances peer-governance; respects the authority of the university to adjudicate the Student Code of Conduct and major alleged policy violations (such as hazing, sexual misconduct, and organizational alcohol violations); and avoids multiple, overlapping conduct processes.
 - 1. The IFC shall develop an agreement with the university that identifies the role of each body in adjudicating allegations of chapter-level misconduct.
 - 2. The IFC Judicial Board shall defer to the university to investigate and adjudicate hazing and sexual misconduct allegations, or any other allegation that is being investigated and/or adjudicated through the university's conduct process.
- F. In all other instances, the IFC Judicial Board has the autonomy and responsibility to adjudicate chapter-level violations of the IFC Constitution, bylaws, and other policies and establish educational sanctions, provided:
 - 1. Basic due process protections have been provided for the accused chapter.
 - 2. Sanctions are punitive and/or educational (but not solely punitive or financial), progressive, and do not restrict associational rights or student choice.
 - 3. An appeal process is available.
- G. The IFC will not issue blanket sanctions for chapters that have not been found responsible for policy violations (i.e. system-wide ban on activities). An exception may be made for health and safety concerns with restrictions limited to events with alcohol, provided the exception is for a defined period of no more than 30 days, with a specific plan to lift the restriction, and in accordance with powers enumerated in the IFC Constitution and Bylaws.
- H. The general values-based conduct of fraternity men.

Section III. IFC Justice Eligibility

In order to serve as the IFC Justice for a member chapter on the IFC Judicial Board, an individual must meet the following requirements:

- A. Be an Initiated Member in good standing, of an IFC member chapter and have been affiliated for a minimum of two semesters.
- B. Maintain an overall grade point average of 2.70 or higher and good academic standing with Furman University.
- C. Possess a student conduct record clear of violations of the Furman University Student Conduct Code.

- D. Be devoted to the general ideals and principles of fraternity life and conduct himself in a professional manner consistent with the Mission and Purpose of the IFC, as defined within this Constitution.
- E. Have a working knowledge of the IFC Constitution and Bylaws, Furman University policies, NIC Standards, and NIC Alcohol & Drug Guidelines.
- F. Not be a current member of the IFC Executive Board or serve as his member chapter's IFC Representative or Alternate Representative for the IFC General Body.
- G. Must complete formal judicial policies and procedures training prior to serving on an IFC Judicial Board hearing.

Section IV. Term of Office of IFC Justices

The term of office for IFC Justices shall be until their graduation, resignation, or replacement under the procedures determined by each member chapter; or upon his election to serve on the IFC Executive Board or as his member chapter's IFC Representative or Alternate Representative for the IFC General Body.

Section V. IFC Judicial Policy

The Judicial Board shall perform all duties and be subject to all regulations contained within the IFC Judicial Policy in the Bylaws.

Section VI. IFC Judicial Board Hearing Justice Selection

The IFC Justice whose member chapter is involved in the alleged violation shall not sit on the board for the hearing of that case.

Section VII. IFC Judicial Board Hearing Attendance

All IFC Judicial Board hearings shall be conducted in accordance with the following requirements:

- A. All IFC Justices assigned to an IFC Judicial Board hearing shall be present in order to conduct business on behalf of the IFC Judicial Board.
- B. Each IFC Justice assigned to an IFC Judicial Board hearing is required to attend the hearing. Failure of an IFC Justice to attend an IFC Judicial Board hearing for which he was assigned shall result in his member chapter being referred to the IFC Vice President of Social Standards & Risk Management for potential judicial review.

Section VIII. IFC Judicial Board Hearing Voting Policies

All IFC Judicial Board hearings shall operate utilizing the following voting policies:

- A. Each IFC Justice serving on an IFC Judicial Board hearing shall have one vote.
- B. A majority vote shall govern all actions of an IFC Judicial Board.

ARTICLE X: ROLE OF THE IFC JUSTICE

Section I. IFC Justice

The duties and responsibilities of an IFC Justice are as follows:

- A. Serve as an impartial justice, as called, on IFC Judicial Board hearings.
- B. Uphold:
 - 1. the IFC Constitution, Bylaws, Code of Conduct, and policies;
 - 2. the rules and regulations of Furman University; and

3. the general values-based conduct of fraternity men.
- C. Maintain confidentiality in all judicial hearings, matters, and deliberations.

ARTICLE XI: ROLE OF THE IFC ADVISOR

Section I. IFC Advisor

The IFC Advisor should work to support all NIC Standards, policies and practices. In addition, in accordance with the Standards and Guidelines for Fraternity and Sorority Advising Programs of the Council for the Advancement of Standards in Higher Education (CAS), the duties and responsibilities of the IFC Advisor are as follows:

- A. Advise the IFC and its member chapters.
- B. Advise and consult with the IFC Judicial Board on all conduct cases.
- C. Advise financial processes.
- D. Facilitate or provide resources, including potential presenters of campus or national renown to conduct workshops, programs, retreats, and seminars on relevant topics, including the following:
 1. Multicultural Competence
 2. Leadership Development
 3. Recruitment and Intake
 4. Risk Management
- E. Monitor membership and academic retention by member chapters and the entire community for purposes of improving academic support and recommending intervention strategies.
- F. Gather and disseminate information via meetings, websites, newsletters, social media venues, and/or information bulletins to the various entities in fraternity life.
- G. Provide assistance and advice in planning and assessing IFC and member chapter programs.
- H. Organize and facilitate leadership programs, retreats, and workshops.
- I. Connect the Members and New Members of member chapters to leadership opportunities across campus, in the local community, and within their inter/national organizations.
- J. Publish or share documents that focus on current events, leadership opportunities, trends, and other information regarding fraternity life.
- K. Provide for the recording and archiving of information about the fraternal community and encourage member chapter leaders to do the same within their organizations.

ARTICLE XII: CONSTITUTIONAL AMENDMENTS

Section I. Constitutional Amendments and Bylaws

This Constitution and Bylaws may be amended by a two-thirds (2/3) affirmative vote of the IFC General Body provided notice of the proposed amendment has been provided to member chapters at the preceding regularly scheduled business meeting of the IFC General Body.

Section II. Adoption

This Constitution shall become effective and shall supersede all previous Constitutions of the IFC when adopted by a two-thirds (2/3) affirmative vote of the IFC General Body.

ARTICLE XIII: MEMBERSHIP RECRUITMENT

Section I. Eligibility

A male student must meet the following qualifications to be eligible for membership in a fraternity:

1. Must have earned 12 credit hours as recognized by Furman University.
2. Must have an overall grade-point average of 2.50 or higher.

Meeting eligibility requirements does not guarantee a student will receive a bid, and additionally, receiving a bid does not guarantee a student full membership with any fraternity.

Section II. Open Recruitment

The rules for open recruitment will be as following:

- A. Member fraternities can elect to extend bids to students who meet the eligibility criteria during the designated Fall and Spring Formal Rush Periods.
- B. All Fraternities will observe dry recruitment. No alcohol will be served, or present in any recruitment event of any capacity.
- C. No women should be present at any recruitment event.

Section III. Formal Recruitment

Formal recruitment shall consist of, but not be limited to, the following events:

- A. Open House: Held during the fall semester and open to all male students. Member chapters not in attendance will be fined \$500. Each fraternity must disclose the chapter's most recent GPA, the amount of semester and yearly dues, and the expectations of each member.
- B. Recruitment Orientation: During the first night of the week of Formal Recruitment, there shall be an orientation for all male students registered for recruitment. This orientation is mandatory for all potential new members. Recruitment schedules and rules will be presented and each chapter will give a short presentation including the chapter's most recent GPA, the amount of semester and yearly dues, and the expectations of each member.
- C. Invite Rounds: Invitational rounds will be an hour long and will be spaced evenly so that prospective new members will have adequate times to move from one to the other if they are invited to multiple events. The time schedule will be specified by the Furman Interfraternity Council. The location will be up to the discretion of the hosting fraternity.
- D. Intention Round: Intention rounds will be one hour long. There will be a 30 minute window after the conclusion of each Intention Round so that prospective new members may have adequate time to transfer if necessary. Prospective new members are allowed to attend no more than two Intention Rounds. The time schedule will be specified by the Furman Interfraternity Council. The location will be up to the discretion of the hosting fraternity.
- E. Bid Day: Bid Day will be held on campus marking the end of Formal Recruitment. Potential New Members will attend the Bid Ceremony to receive their bids. If they have not received a bid from their first choice, they can accept or decline their second choice (when applicable).

Section IV. Formal Recruitment Rules

The rules of Formal Recruitment will be as following:

- A. Students wishing to pursue a bid through formal recruitment fraternity must be registered with IFC by the start of the Recruitment Orientation.
- B. All Fraternities will observe dry recruitment. No alcohol will be served, or present in any Recruitment event of any capacity.
- C. No women should be present at any recruitment event.
- D. All dates and times will be specified and published by the IFC of Furman University.
- E. During any Formal Recruitment event, no brother of any fraternity will attempt to contact a prospective new member while they are attending another fraternities' Formal Recruitment event.
- F. There will be a silence period observed by all fraternities after the conclusion of the Intention Round for each Member Chapter until Bid Day. Silence period is defined as no communication, in any form, including but not limited to, e-mail, texting, calling, the use of non-members, talking, social media, etc. Any communication regarding an official University matter (e.g. academics, athletics, student organization business, residence life, etc.) should not include any discussion of fraternity.
- G. Each fraternity will be required to turn in a list of invitations and attendees from their Invitation and Intention Rounds to the Assistant Director of Student Involvement. Attendee lists are due one hour after the event concludes. Invitation lists are due by:
 - 1. Invitation Rounds: midnight after Recruitment Orientation
 - 2. Intention Rounds: midnight following the conclusion of the final Invitation Round
- H. Each fraternity will provide a list of men to whom they are extending bids to the Assistant Director of Student Involvement by midnight the night before Bid Day.

Any Member Chapter found in violation of the rules of formal recruitment shall be referred to the IFC Vice President of Social Standards & Risk Management for potential judicial review.

Section V. Recruitment Infractions

Recruitment infractions are defined as any action detrimental to a fraternity, group of fraternities, or the Interfraternity Council. A list of potential infractions are as follows:

- A. "Bad-mouthing" another group (i.e., through implication, giving false information, etc.).
- B. Giving an oral bid, or promising or handing out a bid prior to the designated bid day.
- C. Undue pressure on a Potential New Member to join.
- D. Violating any Furman, IFC, or NIC policy during formal recruitment for the purpose of getting a Potential New Member to join.
- E. Any violation of Health and Safety policy during recruitment.
- F. Any other act deemed by the Judicial Board or the IFC VP of Recruitment as "Dirty Rushing".

ARTICLE XIV: FINANCIAL MANAGEMENT POLICY

Section I. Fiscal Year

The IFC Fiscal Year shall be from July 1st to June 30th.

Section II. IFC Annual Budget

The Vice President of Administration and Scholarship and the IFC Finance Committee shall propose an annual budget to the IFC Executive Board by March 15th. Upon adoption by the IFC Executive Board, the budget shall be presented to the IFC General Body for ratification.

Section IV. Appropriate Use of IFC Funds

IFC funds are under the jurisdiction of the IFC member chapters and shall only be used in a manner that benefits the fraternity community and that is congruent with the values of fraternity life. IFC funds shall not be used to purchase alcoholic beverages.

Section V. Expenditures and Reimbursements

The IFC President and the IFC Vice President of Finance shall approve all budgetary expenditures. Individuals or member chapters conducting business on behalf of the IFC may request a reimbursement for their expenses.

Section VI. Signature Requirements for Financial Accounts and Transactions

The signature of both the IFC President and IFC Vice President of Finance shall be required on all IFC financial accounts and transactions.

Section VII. Financial Reporting

The IFC Vice President of Finance shall provide a financial report to the IFC General Body on a monthly basis including all income and expenses during the given period of time and in relation to the overall budget for each line item.

Section VIII. Financial Record Keeping

The IFC Vice President of Finance shall maintain accurate and organized financial records consisting of all receipts and invoices, copies of all monetary disbursements and deposits, IFC financial forms and reports, actual dues levied, canceled checks, ledgers, and journals.

ARTICLE XV: MEMBER CHAPTER FINANCIAL OBLIGATIONS

Section I. IFC Initiated Member Chapter Dues

The term dues for each member chapter shall be fixed at \$20 per initiated member.

Section II. Establishment of IFC Member Chapter Dues

Any proposed amendment to the established per initiated member dues in Section I of this Article shall be initiated utilizing the following protocol:

- A. If the IFC Executive Board determines a need to amend the established per initiated member dues amount, it shall charge the IFC Finance Committee with assessing the current dues amount and providing a recommendation for possible amendments.
- B. The IFC Executive Board shall consider any recommendations made by the IFC Finance Committee and propose an amendment to the dues amount to the IFC General Body.
- C. A 2/3 vote of the IFC General Body is required to amend the IFC member chapter dues amount.

Section III. IFC Member Chapter Dues Assessment

The aggregate total of dues assessed shall be based upon each member chapter's term Initiated Member Roster that is filed with the Office of Fraternity and Sorority Life. The IFC Vice President of Finance shall invoice each member chapter within one week of receipt of an Initiated Member Roster or New Member Roster. Invoices shall be paid within two weeks of receipt.

Section IV. Delinquent Payments

Any amount unpaid by the due date shall result in a 10% penalty and loss of voting rights in the IFC General Body until payment has been made. Any amount unpaid within one month of the due date shall result in the member chapter being referred to the IFC Vice President of Social Standards & Risk Management for possible judicial action.

ARTICLE XVI: EXPANSION POLICY

Section I General Philosophy

Realizing the importance of controlled growth to the continuance of the IFC men's fraternity community, the Interfraternity Council of Furman University hereby sets forth the following policy and procedures for expansion and colonization on the Furman University campus.

- A. The IFC and the University jointly reserve the right to invite specific national fraternities to colonize at the University.
- B. All fraternities shall be subject to the expansion policy from the time of first contact with the IFC and/or the Greek Life staff until accepted as a member of the IFC.
- C. Expansion is a step by step process and the completion of one or more steps in no way guarantees a commitment to extend an invitation to colonize.
- D. The University does not recognize local fraternities. All men's fraternities who desire membership in the IFC at Furman University must have affiliation with a national organization.
- E. Failure of a national organization to adhere to the IFC and University policy may result in lack of recognition in the future.
- F. IFC may decide at any time to create and/or change any expansionary policy(ies) with a 2/3 majority vote.

Section II Expansion Process

Fraternity expansion at Furman University shall follow the following steps:

- A. Pre-discussion:
The IFC President and IFC Advisor shall confer with the office of Student Life and Furman Administration prior to any formal discussion of Expansion. The expansion process may begin when given approval.
- B. Discussion
 1. To begin the Discussion Stage, a motion must be made to discuss expansion and form an expansion committee. The committee will be composed of the IFC executive board and the chapter representatives.
 2. As their primary mission, the council shall review the current climate of the IFC fraternity community at Furman University to determine the viability of a potential chapter. This review should focus on the interest of unaffiliated male students on campus and their interest in a new opportunity for fraternity membership.

3. The Interfraternity Council's concerns should be for the long-term benefit of all male students to have the opportunity to join a fraternity and the benefit of such a chapter to the Furman community.
4. All action in the area of colonization must be approved and sanctioned by the committee.
5. Discussion in the committee to approve or reject the motion for expansion will last no less than two weeks.
6. If the motion for expansion is approved, the committee will move on to the Inquiry phase.

C. Inquiry

1. The IFC President shall compose a notice extending the invitation for national fraternities not represented on campus to submit a letter of interest of expansion to the University by a predetermined deadline. The invitation should include a copy of pertinent campus policies, including the Expansion Policy.
2. Any interested fraternity must provide the following information, at minimum, to the Interfraternity Council:
 - a. Number of alumni within a 50-mile radius of Greenville;
 - b. Number of colonization attempts in the last five (5) years, their respective status, and the names of the institutions at which they are located;
 - c. Number of colonization attempts presently pending and the names of the respective institutions;
 - d. Name of the institution hosting the nearest chartered chapter of the fraternity and its status;
 - e. The ratio of field staff/consultants to chapters/colonies and the set visitation program;
 - f. Reason for interest in colonizing at Furman University
 - g. The fraternity, its constitution and its governing laws shall be in compliance with Furman's student organization policies
3. All members of the committee shall take time to review the materials received in order to familiarize themselves with all the respective fraternities' programs and philosophies prior to any discussion on such information.
4. No sooner than two weeks after the submission deadline, the committee will reconvene to open discussion on which fraternities to invite to present on campus.
5. Upon review of submitted information, the Interfraternity Council shall develop a group no larger than three candidate fraternities per expansion opening. These groups will be invited to visit the campus and make presentations before the full IFC and interested Student Life staff for the purpose of mutual evaluation in the Selection phase.

D. Selection

1. The IFC President shall compose a letter to those finalists inviting them to campus for the purpose of educating the full community on the philosophies and programs of the fraternity.
2. Fraternity visits shall be conducted on separate dates, predetermined by the Expansion committee.
3. The Interfraternity Council shall prepare ranking sheets for the evaluating members to use in determining fraternity rankings towards potential colonization. The following

criteria shall be considered in selection of colonizing fraternities (in no particular order):

- a) Success ratio of colonization over the past 5 years;
 - b) Number of alumni within a 50-mile radius of Greenville;
 - c) Number of chapters within a 250-mile radius of Greenville;
 - d) Location of national headquarters and respective staff members;
 - e) Completeness of requested application materials;
 - f) Timeliness of application materials;
 - g) Former affiliation with Furman University;
 - h) Specific student, faculty, and/or staff interest in establishing a new chapter;
 - i) Demonstrated interest by the fraternity; and
 - j) Quality of presentation by those fraternities invited to appear before IFC.
4. Following the final presentation of the national fraternities, the expansion committee will meet to select the fraternity that will be invited to expand.
 5. The invited group must attain a majority vote by the IFC. Therefore, if there are three groups invited to present and none receives a majority on the first ballot, the group with the lowest number of votes will be removed and a second vote will be taken between the two groups receiving the highest vote totals.
 6. Upon selection of a fraternity, IFC's President will present to the Vice President for Student Life the recommendation and desire to extend an invitation to the selected fraternity. A letter shall be sent to the Vice President for Student Life advising him/her of the IFC approval of a particular fraternity's colonization. With his/her agreement, a joint invitation will be extended to the approved fraternity.
 - a) The Vice President for Student Life shall have the opportunity to review the IFC decision in an open forum and make the final decision to approve or disapprove the IFC recommendations.
 7. After University approval is granted, the IFC President shall compose a letter of invitation to the selected fraternity to expand on campus.
 8. If the invited fraternity declines, IFC may then invite the next fraternity on the priority list.
 9. The Interfraternity Council shall keep on file for two calendar years the information submitted from all fraternities not selected for colonization.

Section III Colonization

- A. Upon receipt of the fraternity's acceptance, the IFC and IFC Advisor shall work with the appropriate national fraternity staff member(s) to offer any assistance possible to ensure the success of the colonization.
- B. The beginning date of the colonization will be decided by the IFC in consultation with the respective fraternity.
- C. The rights and privileges afforded the colony shall include the below-listed items. If necessary and at their discretion, IFC may waive any of the following requirements. The colony shall:
 1. Be permitted to recruit potential new members who meet membership eligibility criteria
 2. Attend all IFC meetings and pay IFC dues
 3. Receive all services granted to full status members of IFC

4. Have a cumulative chapter GPA (from the time the colony was formed) at or above the IFC average of the previous semester
5. Report a minimum of 5 hours community service per member per semester
6. Maintain a faculty or staff advisor and keep the individual's name and contact information on file with the Office of Fraternity and Sorority Life
7. Maintain an active alumni advisory committee as prescribed through the national fraternity
8. Comply with all University and IFC rules and regulations, policies, and procedures
9. As represented by the colony president, meet with the IFC advisor and the IFC president on a monthly basis
10. Provide IFC with a semesterly report on the status of the colony
11. Participate in all Fraternity and Sorority community initiatives
12. Have a national representative visit a minimum of once each semester for as long as it exists as a colony of the national fraternity; and
13. Function as a colony for no less than one academic semester and no more than two years.

ARTICLE XVII: IFC CODE OF CONDUCT

Section I. IFC Judicial Board Jurisdiction

The IFC shall be a peer-governing organization with an independent Judicial Board, which shall have jurisdiction over cases involving alleged member chapter violations, including but not limited to:

- A. The IFC Constitution, Bylaws, Code of Conduct, and other policies.
- B. The general values-based conduct of fraternity men.

The IFC Judicial Board shall work with the campus to implement a comprehensive conduct program that enhances peer-governance; respects the authority of the campus to adjudicate alleged violations of the Student Code of Conduct; and avoids multiple, overlapping conduct processes.

- A. The IFC shall develop an agreement with the campus that identifies the role of each judicial body in adjudicating allegations of chapter-level misconduct.
- B. The IFC Standards Board shall defer to the campus to investigate and adjudicate hazing and sexual misconduct allegations, or any other allegation that is being investigated and/or adjudicated through the campus' conduct process.
- C. For all other instances—outside of hazing and sexual misconduct—the Standards Board has the autonomy and responsibility to adjudicate chapter-level violations.

Section II. IFC Judicial Committee Composition

The IFC Judicial Board shall be composed of one IFC Justice from each full IFC member chapter, chosen by that member chapter, and shall be chaired by the IFC Vice President of Social Standards & Risk Management.

Section III. Term of Office of IFC Justices

The term of office for IFC Justices shall be until their graduation, resignation, or replacement under the procedures determined by each member chapter; or upon his election to serve on the IFC Executive Board or as his member chapter's IFC Representative or Alternate Representative for the IFC General Body.

Section IV. IFC Judicial Policy

The Judicial Board shall perform all duties and be subject to all regulations contained within the IFC Judicial Code in the Bylaws.

Section V. IFC Judicial Board Hearing Justice Selection

The IFC Justice whose member chapter is involved in the alleged violation shall not sit on the board for the hearing of that case.

Section VI. IFC Judicial Board Hearing Attendance

All IFC Judicial Board hearings shall be conducted in accordance with the following requirements:

- A. All IFC Justices assigned to a hearing shall be present in order to conduct business on behalf of the IFC Judicial Board.
- B. Each IFC Justice assigned to a hearing is required to attend. Failure of an IFC Justice to attend a hearing for which he was assigned shall result in his member chapter being referred to the IFC Vice President of Social Standards & Risk Management for potential judicial review.

Section VII. IFC Judicial Board Hearing Voting Policies

All IFC Judicial Board hearings shall operate utilizing the following voting policies:

- A. Each IFC Justice serving on a hearing shall have one vote.
- B. A majority vote shall govern all actions of an IFC Judicial Board.

ARTICLE XVIII: IFC JUDICIAL PROCEDURES

Section I. IFC Judicial Powers and Responsibilities

Per Article VI, Section I of the IFC Constitution, the IFC shall be a peer-governing organization with an independent Judicial Board that shall have jurisdiction over cases involving alleged member chapter violations of IFC policy, including but not limited to:

- A. The IFC Constitution, Bylaws, Code of Conduct, and policies;
- B. The general values-based conduct of fraternity men.

Section II. Due Process

In appearing before the Judicial Board, each member chapter shall be granted certain rights termed "due process." Those rights are:

- A. Right to be notified, in writing, of all charges, as outlined in the Bylaws;
- B. Right to present a defense, including the calling of witnesses;
- C. Right to question witnesses;
- D. Right to be accompanied by an advisor for advisory purposes only, but not for representation;

- E. Right to be notified, in writing, of all findings and sanctions imposed, as outlined in the Bylaws;
- F. Right to appeal the decision, as outlined in the Bylaws.
- G. Right to be free from double jeopardy.

Section III. Filing of Complaints

Any individual or group may file a complaint against a member chapter, specifying in writing the particular alleged acts of the accused. This must be done by submitting an IFC Judicial Complaint Form to the IFC Vice President of Social Standards & Risk Management. The IFC Vice President of Social Standards & Risk Management shall promptly review and investigate the allegation. Upon determination that an allegation contains information sufficient to warrant further adjudication, the IFC Vice President of Social Standards & Risk Management may charge a member chapter with a violation.

Section IV. Notification of Charges

Once the IFC Vice President of Social Standards & Risk Management has determined the filed complaint has merit, the member chapter and its inter/national organization is to be provided written notification of the charges at least two weeks in advance of the hearing.

This written notification shall include the following:

- A. Date, time and location of their Informal Resolution Hearing;
- B. Description of the alleged violation; and
- C. Due process rights.

Section V. Investigatory Evidence

All evidence related to a complaint shall be compiled and presented to all parties at least one week prior to any informal Resolution Hearing or formal Judicial Board hearing. All evidence shall be directly related to the complaint(s) alleged against the member chapter and shall be approved by the IFC Vice President of Social Standards & Risk Management prior to circulation.

Section VI. Informal Resolution Hearing

Upon a finding of the IFC Vice President of Social Standards & Risk Management that a filed complaint contains information sufficient to warrant further adjudication, he may offer the charged member fraternity the opportunity to participate in an Informal Resolution Hearing unless he feels that potential sanctions could include suspension or loss of IFC recognition.

In cases in which the charged member chapter accepts an Informal Resolution Hearing, the IFC Vice President of Social Standards & Risk Management shall meet with a representative of the charged member chapter to discuss the allegations of the complaint. Within three (3) business days of the Informal Resolution Hearing, the IFC Vice President of Social Standards & Risk Management may dismiss the complaint with a finding of no violations, provide the charged member chapter with his finding of violations and recommendation for a resolution through disciplinary or corrective sanctions. The charged member chapter has three (3) business days to accept or reject the terms of resolution. If the charged member chapter

accepts the resolution, the charged member chapter waives all rights of appeal and the outcome is final.

If the charged member chapter rejects the offer of an Informal Resolution Hearing or the resolution, a Formal IFC Judicial Board Hearing will be convened to hear the case.

Section VII. Prohibited Sanctions for Informal Resolution Hearing

The IFC Vice President of Social Standards & Risk Management shall not recommend suspension or loss of IFC recognition through an Informal Resolution Hearing. Should the IFC Vice President of Social Standards & Risk Management believe suspension or loss of IFC recognition is warranted, the case shall automatically be referred to a Formal IFC Judicial Board Hearing.

Section VIII. Formal IFC Judicial Board Hearing

If:

- A. The charged member chapter rejects having an Informal Resolution Hearing;
- B. The charged member chapter rejects the findings and/or sanctions of the Informal Resolution Hearing
- C. The IFC Vice President of Social Standards & Risk Management determines the allegation is egregious enough to warrant potential suspension or loss of IFC recognition; or
- D. The IFC Vice President of Social Standards & Risk Management chose not to offer an Informal Resolution Hearing;

The IFC Vice President of Social Standards & Risk Management shall convene a Formal IFC Judicial Board Hearing.

The IFC Vice President of Social Standards & Risk Management shall serve as a non-voting Chief Justice and preside over all formal Judicial Board hearings.

Section IX. Formal IFC Judicial Board Hearing Proceedings

For all IFC Judicial Board hearings, the following procedures shall be followed:

- A. **Participants:** Attendance at all IFC Judicial Board hearings shall be limited to the member chapters involved, any witnesses, the IFC Justices assigned to serve on the Judicial Board for the hearing, the IFC Vice President of Social Standards & Risk Management, and the Interfraternity Council advisor. At the discretion of the IFC Vice President of Social Standards & Risk Management, witnesses may be excluded from the hearing room until it is his or her turn to testify. Additionally, the charged member chapter may be accompanied by its chapter advisor during any Judicial Board hearing. The chapter advisor must be registered as the official chapter advisor of the member chapter. Any advisors present, chapter or council, shall only act in an advisory capacity and are not allowed to conduct any portion of the chapter's presentation or board's procedures.
- B. **Confidentiality:** All individuals involved in a hearing are required to agree to a statement of confidentiality. Individuals shall not disclose information regarding the following:
 - 1. Any individuals, member chapters, or IFC Justices involved.

2. Details of the proceedings
3. Witness testimony.
- C. Hearing Process:
 1. Initiation of the Hearing: The IFC Vice President of Social Standards & Risk Management shall inform all individuals present that the hearing will be conducted in an orderly manner and any person causing disruption will be asked to leave. Additionally, he shall advise the charged member chapter of the formality of the hearing and the necessity of all parties to be truthful.
 2. Overview of Judicial Hearing Process: The IFC Vice President of Social Standards & Risk Management shall outline the process for the remainder of the hearing as follows:
 - a. Presentation of alleged charges, violations, and investigatory evidence against the charged member chapter shall be presented by the IFC Vice President of Social Standards & Risk Management:
 - i. Charged member chapter may ask questions;
 - ii. IFC Justices may ask questions;
 - b. Presentation of charged member chapter:
 - i. IFC Justices may ask questions;
 - c. Calling of Witnesses
 - i. Charged member chapter may ask questions;
 - ii. IFC Justices may ask questions;
 - d. Charged member chapter may give final statement;
 - e. IFC Justices deliberate in closed session to determine findings of responsibility and if necessary, appropriate sanction(s).

Section X. Conflicts of Interest

In the event the IFC Vice President of Social Standards & Risk Management' member chapter is involved in the alleged violation, the highest ranking IFC Executive Board officer, starting with the IFC President, as listed in Article V, Section II of the IFC Constitution, shall serve in his stead.

Section XI. Prohibition on Recruitment Restrictions as a Sanction

The IFC Judicial Board may impose educational and punitive sanctions, as prescribed in the IFC Bylaws, but under no circumstances may it prohibit a Member Fraternity's ability to recruit.

Section XII. Non-Status Sanctions

The IFC Judicial Board may impose sanctions that are punitive and/or educational, but not solely financial and do not restrict recruitment. The following are sanctions that may be imposed by the IFC Judicial Board and/or IFC Vice President of Social Standards & Risk Management (including, but not limited to):

- A. Letter of apology
- B. Fines
- C. Restitution
- D. Educational programming
- E. Public service to the campus or community

- F. Meetings with campus office/departments
- G. Loss of social event and/or campus event privileges
- H. Loss of eligibility for IFC Awards
- I. Censure

Section XIII. Status Sanctions

In the event of an egregious violation, the following are sanctions that may be imposed by the IFC Judicial Board for a specified period of time:

- A. Suspension: Loss of IFC voting rights and removal from good standing status, and any additional Non-Status Sanctions.
- B. Loss of IFC Recognition: Loss of IFC recognition and its rights and privileges.

When adjudicating a potential violation that may result in suspension/loss of recognition from the IFC for the member chapter, the Judicial Board shall work collaboratively with the inter/national organization and campus.

Section XIV. Duration of Sanctions

Judicial action shall specify the duration and deadlines of any sanctions imposed. After such specified time, if the member chapter has fulfilled the requirements of the sanctions imposed, the member chapter shall return to good standing. In the event the member chapter does not fulfill all of the requirements of the sanctions imposed, the IFC Vice President of Social Standards & Risk Management shall convene a Formal IFC Judicial Board Hearing to determine future course of action.

Section XV. Notification of Findings

Within three (3) business days of any Informal Resolution Hearing or Formal Judicial Hearing, the IFC Vice President of Social Standards & Risk Management shall communicate in writing to the charged member chapter, its inter/national organization, and its chapter advisor, as well as any relevant Furman University administrators, the alleged violation, the findings of the hearing, and any sanction(s) imposed.

The IFC Vice President of Social Standards & Risk Management shall notify the IFC General Body of any sanctions imposed upon a member chapter through any Informal or Formal Judicial Hearing.

Section XVI. Appeals

The IFC Judicial Board's decision is subject to appeal by a member chapter within two weeks of receiving written notification of the decision. Appeals shall be made in writing to the IFC President and shall be made solely on the following grounds or be dismissed:

- A. Error in the charge and/or Judicial Board Hearing process that materially affected the outcome.
- B. The severity of the sanction did not match the severity of the violation.
- C. New information that could not have been discovered prior to the IFC Judicial Board Hearing through the exercise of reasonable diligence.

Sanctions imposed through the Judicial Process shall stand until an appeal is heard.

Section XVII. Non-Status Sanctions Appeals

The IFC Executive Board shall hear appeals for Non-Status Sanctions. The IFC Vice President of Social Standards & Risk Management shall first present the IFC Judicial Board's decision and rationale for its actions. The appealing member chapter shall then be afforded the opportunity to present its reasoning for seeking a reconsideration of the IFC Judicial Board's actions. The appealing chapter must be given at least one week's notice of the time, place, and procedure of the appeal hearing. Any individual from the appealing member chapter serving on the IFC Executive Board shall not participate in the appeal proceedings. The IFC Executive Board may either dismiss the charge(s) with no sanctions or alter the sanctions imposed by the Formal IFC Judicial Board Hearing. Any alterations must be approved by at least two thirds (2/3) of the IFC Executive Board. The decision of the IFC Executive Board shall be final for Non-Status Sanctions.

Section XVIII. Status Sanctions Appeals

The IFC General Body shall hear appeals for Status Sanctions. The IFC Vice President of Social Standards & Risk Management shall first present the IFC Judicial Board's decision and rationale for its actions. The appealing member chapter shall then be afforded the opportunity to present its reasoning for seeking a reconsideration of the decision. The appealing chapter must be given at least one week's notice of the time, place, and procedure of the appeal hearing. Upon completion of the member chapter appeal presentation, all representatives of the Member Fraternity shall be dismissed from the meeting, including the member chapter's IFC Representative and Alternate Representative.

The IFC General Body shall first vote on whether to discuss dismissal or alteration of the status sanction, which shall require a two-thirds (2/3) vote. In the event the IFC General Body votes to discuss dismissal or alteration, the IFC General Body shall determine by a two-thirds (2/3) vote to either dismiss the charge(s) with no sanctions or to alter the sanctions imposed. If a two thirds (2/3) majority cannot be achieved for dismissal or alteration of the sanctions, the initial sanctions will remain in place.

The decision of the IFC General Body shall be final with no further appeal rights.

ARTICLE XIX: REBUILDING CHAPTER STATUS

The Interfraternity Council is committed to our values of opportunity and interfraternalism. We have created this status for rebuilding chapters in an attempt to provide them the best opportunity for success and a support system in striving for the goal of interfraternalism.

Section I. Definition

IFC defines a rebuilding chapter as any member chapter of less than 10 members.

Section II. Continuous Recruitment

Continuous recruitment means member chapters may submit bids to potential new members after the fall and spring bid days for that semester.

A Member chapter under 10 associated members may submit a request to the IFC Executive Board to participate in continuous recruitment provided:

- A. The member chapter is in Good Standing.
- B. The member chapter participated fully in the previous semesters' formal recruitment.
- C. All potential new members have submitted the GPA release form to the Assistant Director of Student Involvement prior to being extended a bid.
- D. Member chapters must inform the IFC VP of Recruitment and Assistant Director of Student Involvement prior to extending a bid.
- E. Member chapters must still abide by deferred recruitment.

Section III. Dues

Member chapters under 10 initiated members can be exempt from paying IFC member chapter dues at the discretion of the IFC VP of Finance, provided:

- A. Member chapters continue to attend weekly IFC meetings.
- B. Member chapters continue to participate in IFC community events.